

AMENDMENTS

1965—Subsecs. (a), (c). Pub. L. 89-110, § 15(a), struck out “Federal” before “election” wherever appearing.

Subsecs. (f) to (h). Pub. L. 89-110, § 15(b), redesignated subsecs. (g) and (h) as (f) and (g), respectively, and repealed former subsec. (f) which defined “Federal elections”.

1964—Subsec. (a). Pub. L. 88-352, § 101(a), designated existing provisions as par. (1) and added pars. (2) and (3).

Subsec. (c). Pub. L. 88-352, § 101(b), provided for a rebuttable literacy presumption when a person has not been adjudged an incompetent and has completed the sixth grade of his schooling.

Subsecs. (f), (g). Pub. L. 88-352, § 101(c), added subsec. (f) and redesignated former subsec. (f) as (g).

Subsec. (h). Pub. L. 88-352, § 101(d), added subsec. (h).

1960—Subsec. (c). Pub. L. 86-449, § 601(b), permitted the State to be joined as a party defendant in cases where officials of a State or subdivision thereof are alleged to have committed acts or practices constituting a deprivation of any rights or privileges secured by subsection (a) of this section, and authorized commencement of the proceeding against the State where an official has resigned or has been relieved of his office and no successor has assumed such office.

Subsecs. (e), (f). Pub. L. 86-449, § 601(a), added subsec. (e) and redesignated former subsec. (e) as (f).

1957—Pub. L. 85-315, § 131, substituted “Voting rights” for “Race, color, or previous condition not to affect right to vote” in section catchline, designated existing provisions as subsec. (a), and added subsecs. (b) to (e).

SHORT TITLE OF 1992 AMENDMENT

Pub. L. 102-344, § 1, Aug. 26, 1992, 106 Stat. 921, provided that: “This Act [amending section 1973aa-1a of this title] may be cited as the ‘Voting Rights Language Assistance Act of 1992’.”

SHORT TITLE

Pub. L. 99-410, § 1, Aug. 28, 1986, 100 Stat. 924, provided that: “This Act [enacting subchapter I-G of this chapter, sections 608 and 609 of Title 18, Crimes and Criminal Procedure, and section 3406 of Title 39, Postal Service, amending sections 2401, 3627, and 3684 of Title 39, repealing subchapters I-D and I-E of this chapter, and enacting provisions set out as notes under section 1973ff of this title] may be cited as the ‘Uniformed and Overseas Citizens Absentee Voting Act’.”

Pub. L. 98-435, § 1, Sept. 28, 1984, 98 Stat. 1678, provided that: “This Act [enacting subchapter I-F of this chapter] may be cited as the ‘Voting Accessibility for the Elderly and Handicapped Act’.”

Pub. L. 97-205, § 1, June 29, 1982, 96 Stat. 131, provided: “That this Act [enacting section 1973aa-6 of this title, amending sections 1973, 1973b, and 1973aa-1a of this title, and enacting provisions set out as notes under sections 1973, 1973b, 1973aa-1a and 1973aa-6 of this title] may be cited as the ‘Voting Rights Act Amendments of 1982’.”

Pub. L. 94-203, § 1, Jan. 2, 1976, 89 Stat. 1142, which provided that Pub. L. 94-203, which enacted subchapter I-E of this chapter, was to be cited as “Overseas Citizens Voting Rights Act of 1975”, was repealed by Pub. L. 99-410, title II, § 203, Aug. 28, 1986, 100 Stat. 930.

Pub. L. 91-285, § 1, June 22, 1970, 84 Stat. 314, provided: “That this Act [designating existing provisions of Pub. L. 89-110 as subchapter I-A, enacting subchapters I-B and I-C of this chapter, and amending sections 1973b and 1973c of this title] may be cited as the ‘Voting Rights Act Amendments of 1970’.”

Section 1 of Pub. L. 89-110 provided that: “This Act [enacting subchapters I-A, I-B, and I-C of this chapter and amending this section] shall be known as the ‘Voting Rights Act of 1965’.”

Section 1 of Pub. L. 86-449 provided that: “This Act [enacting subchapter II of this chapter and sections 837, 1074, and 1509 of Title 18, Crimes and Criminal Procedure, and amending this section and sections 241 and

640 of Title 20, Education] may be cited as the ‘Civil Rights Act of 1960’.”

Section 161 of Pub. L. 85-315 provided that: “This Act [enacting former chapter 20A of this title and section 1995 of this title and section 295-1 of former Title 5, Executive Departments and Government Officers and Employees, amending this section and sections 1343 and 1861 of Title 28, Judiciary and Judicial Procedure, and repealing section 1993 of this title] may be cited as the ‘Civil Rights Act of 1957’.”

Act Aug. 9, 1955, ch. 656, § 1, 69 Stat. 584, which provided that such Act, which enacted subchapter I-D of this chapter and repealed sections 301 to 303, 321 to 331, 341, and 351 to 355 of Title 50, War and National Defense, was to be cited as “The Federal Voting Assistance Act of 1955”, was repealed by Pub. L. 99-410, title II, § 203, Aug. 28, 1986, 100 Stat. 930.

SEPARABILITY

Section 701 of Pub. L. 86-449 provided that: “If any provisions of this Act [see Short Title note above] is held invalid, the remainder of this Act shall not be affected thereby.”

VOTER REGISTRATION DRIVES

Pub. L. 98-473, title I, § 101(j), Oct. 12, 1984, 98 Stat. 1963, provided that: “It is the sense of the Congress that—

“(1) voter registration drives should be encouraged by governmental entities at all levels; and

“(2) voter registration drives conducted by State governments on a nonpartisan basis do not violate the provisions of the Intergovernmental Personnel Act (42 U.S.C. 4728, 4763).”

§ 1972. Interference with freedom of elections

No officer of the Army, Navy, or Air Force of the United States shall prescribe or fix, or attempt to prescribe or fix, by proclamation, order, or otherwise, the qualifications of voters in any State, or in any manner interfere with the freedom of any election in any State, or with the exercise of the free right of suffrage in any State.

(R.S. § 2003.)

CODIFICATION

R.S. § 2003 derived from act Feb. 25, 1865, ch. 52, § 1, 13 Stat. 437.

Air Force inserted to conform to section 207(a), (f) of act July 26, 1947, ch. 343, title II, 61 Stat. 502, which established a separate Department of the Air Force, and Secretary of Defense Transfer Order No. 40 [App. A(10)], July 22, 1949, which transferred certain functions to the Air Force. Section 207(a), (f) of act July 26, 1947, was repealed by section 53 of act Aug. 10, 1956, ch. 1041, 70A Stat. 641. Section 1 of act Aug. 10, 1956, enacted “Title 10, Armed Forces”, which in sections 8010 to 8013 continued Department of the Air Force under administrative supervision of Secretary of the Air Force.

Section was formerly classified to section 32 of Title 8, Aliens and Nationality.

SUBCHAPTER I-A—ENFORCEMENT OF VOTING RIGHTS

SUBCHAPTER REFERRED TO IN OTHER SECTIONS

This subchapter is referred to in sections 1973b, 1973aa-4, 1973ee-5, 1973gg-6, 1973gg-9 of this title; title 28 section 1869.

§ 1973. Denial or abridgement of right to vote on account of race or color through voting qualifications or prerequisites; establishment of violation

(a) No voting qualification or prerequisite to voting or standard, practice, or procedure shall

be imposed or applied by any State or political subdivision in a manner which results in a denial or abridgement of the right of any citizen of the United States to vote on account of race or color, or in contravention of the guarantees set forth in section 1973b(f)(2) of this title, as provided in subsection (b) of this section.

(b) A violation of subsection (a) of this section is established if, based on the totality of circumstances, it is shown that the political processes leading to nomination or election in the State or political subdivision are not equally open to participation by members of a class of citizens protected by subsection (a) of this section in that its members have less opportunity than other members of the electorate to participate in the political process and to elect representatives of their choice. The extent to which members of a protected class have been elected to office in the State or political subdivision is one circumstance which may be considered: *Provided*, That nothing in this section establishes a right to have members of a protected class elected in numbers equal to their proportion in the population.

(Pub. L. 89-110, title I, § 2, Aug. 6, 1965, 79 Stat. 437; renumbered title I, Pub. L. 91-285, § 2, June 22, 1970, 84 Stat. 314; amended Pub. L. 94-73, title II, § 206, Aug. 6, 1975, 89 Stat. 402; Pub. L. 97-205, § 3, June 29, 1982, 96 Stat. 134.)

AMENDMENTS

1982—Pub. L. 97-205 redesignated existing provisions as subsec. (a), struck out the comma after “voting”, substituted “in a manner which results in a denial or abridgement of” for “to deny or abridge”, inserted “, as provided in subsection (b) of this section” after “in contravention of the guarantees set forth in section 1973b(f)(2) of this title”, and added subsec. (b).

1975—Pub. L. 94-73 substituted “race or color, or in contravention of the guarantees set forth in section 1973b(f)(2) of this title” for “race or color”.

EFFECTIVE DATE OF 1982 AMENDMENT

Section 6 of Pub. L. 97-205 provided that: “Except as otherwise provided in this Act, the amendments made by this Act [see Short Title of 1982 Amendment note below] shall take effect on the date of the enactment of this Act [June 29, 1982].”

SHORT TITLE OF 1982 AMENDMENT

Section 1 of Pub. L. 97-205 provided: “That this Act [enacting section 1973aa-6 of this title, amending this section and sections 1973b and 1973aa-1a of this title, and enacting provisions set out as notes under this section and sections 1971, 1973b, 1973aa-1a, and 1973aa-6 of this title] may be cited as the ‘Voting Rights Act Amendments of 1982’.”

SHORT TITLE OF 1970 AMENDMENT

Pub. L. 91-285, § 1, June 22, 1970, 84 Stat. 314, provided: “That this Act [designating existing provisions of Pub. L. 89-110 as subchapter I-A, enacting subchapters I-B and I-C of this chapter, and amending sections 1973b and 1973c of this title] may be cited as the ‘Voting Rights Act Amendments of 1970’.”

SHORT TITLE

Section 1 of Pub. L. 89-110 provided that: “This Act [enacting subchapters I-A, I-B, and I-C of this chapter and amending section 1971 of this title] shall be known as the ‘Voting Rights Act of 1965’.”

SEPARABILITY

Section 208 of Pub. L. 94-73 provided that: “If any amendments made by this Act [enacting sections

1973aa-1a and 1973aa-5 of this title, amending this section and sections 1973a to 1973d, 1973h, 1973i, 1973k, 1973l, 1973aa, 1973aa-2, 1973aa-3, 1973bb, 1973bb-1 of this title, and repealing sections 1973bb-2 to 1973bb-4 of this title] or the application of any provision thereof to any person or circumstance is judicially determined to be invalid, the remainder of the Voting Rights Act of 1965 [this subchapter and subchapters I-B and I-C of this chapter], or the application of such provision to other persons or circumstances shall not be affected by such determination.”

SECTION REFERRED TO IN OTHER SECTIONS

This section is referred to in section 1973j of this title.

§ 1973a. Proceeding to enforce the right to vote

(a) Authorization by court for appointment of Federal examiners

Whenever the Attorney General or an aggrieved person institutes a proceeding under any statute to enforce the voting guarantees of the fourteenth or fifteenth amendment in any State or political subdivision the court shall authorize the appointment of Federal examiners by the Director of the Office of Personnel Management in accordance with section 1973d of this title to serve for such period of time and for such political subdivisions as the court shall determine is appropriate to enforce the voting guarantees of the fourteenth or fifteenth amendment (1) as part of any interlocutory order if the court determines that the appointment of such examiners is necessary to enforce such voting guarantees or (2) as part of any final judgment if the court finds that violations of the fourteenth or fifteenth amendment justifying equitable relief have occurred in such State or subdivision: *Provided*, That the court need not authorize the appointment of examiners if any incidents of denial or abridgement of the right to vote on account of race or color, or in contravention of the voting guarantees set forth in section 1973b(f)(2) of this title (1) have been few in number and have been promptly and effectively corrected by State or local action, (2) the continuing effect of such incidents has been eliminated, and (3) there is no reasonable probability of their recurrence in the future.

(b) Suspension of use of tests and devices which deny or abridge the right to vote

If in a proceeding instituted by the Attorney General or an aggrieved person under any statute to enforce the voting guarantees of the fourteenth or fifteenth amendment in any State or political subdivision the court finds that a test or device has been used for the purpose or with the effect of denying or abridging the right of any citizen of the United States to vote on account of race or color, or in contravention of the voting guarantees set forth in section 1973b(f)(2) of this title, it shall suspend the use of tests and devices in such State or political subdivisions as the court shall determine is appropriate and for such period as it deems necessary.

(c) Retention of jurisdiction to prevent commencement of new devices to deny or abridge the right to vote

If in any proceeding instituted by the Attorney General or an aggrieved person under any